Bihar State Electricity Board vs Nhpc Limited & Ors on 13 April, 2010

Before the Appellate Tribunal for Electricity
(Appellate Jurisdiction)

Review Petition No. 03 of 2010 in Appeal Nos. 138 of 2006.

Dated : April 13, 2010

Present: Hon'ble Mr. Justice M.Karpaga Vinagayam,Chairperson
Hon'ble Mr. H.L. Bajaj, Technical Member

Bihar State Electricity Board -Petitioner

V/s.
NHPC Limited & Others -Respondents

Counsel for Petitioner : Shri R.B. Sharma

Counsel for Respondent : None appeared

ORDER

Per Hon'ble Shri H.L. Bajaj, Technical Member.

This Petition has been filed by Bihar State Electricity Board for review of judgment dated December 23, 2009 rendered by this Tribunal in Appeal No. 138 of 2006 which was filed by NHPC Ltd. challenging the order dated May 09, 2006 passed by the Central Electricity Regulatory Commission in Petition No. 175 of 2004 whereby the Commission had determined the tariff in respect of Rangit Hydroelectric Power Station for the period from April 01, 2004 to March 31, 2009. The Petitioner herein was respondent '4' in the Appeal No. 138 of 2006.

We have heard the learned counsel and carefully gone through the submissions made. The careful reading of judgment of this Tribunal reveals that there is no apparent error on the face of record and correct conclusions have been arrived at on the basis of valid reasoning.

As there is no apparent error on the face of record, we are of the view that no ground is made out for Review. Hence we dismiss this Review Petition at the admission stage itself.

(H.L. Bajaj) (Justice M.Karpaga Vinagayam)
Technical Member Chairperson